

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ DISADVANTAGED ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
15. DELIVER TO CODE		16. ADMINISTERED BY CODE		13b. RATING	
				14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Base Year Portable Latrine Rental and Related Services Services under this CLIN will include rental, delivery, mileage, set-up, pumping, cleaning, refill, restock, dismantling, pickup and relocation of heated and non-heated Standard Portable Latrines, Handicap Portable Latrines. Services under this CLIN will also include the pumping of Vault Latrines, Grey Water Containers, and Black Water Bags /Containers. Services to be performed in accordance with the PWS. A breakdown of each line item is located in the pricing sheet. Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 1001	Option Year 1 Portable Latrine Rental and Related Services Services under this CLIN will include rental, delivery, mileage, set-up, pumping, cleaning, refill, restock, dismantling, pickup and relocation of heated and non-heated Standard Portable Latrines, Handicap Portable Latrines. Services under this CLIN will also include the pumping of Vault Latrines, Grey Water Containers, and Black Water Bags /Containers. Services to be performed in accordance with the PWS. A breakdown of each line item is located in the pricing sheet. Pricing Arrangement: Firm Fixed Price	1	Job		
Option		1	Job		

Line Item 2001	Option Year 2 Portable Latrine Rental and Related Services Services under this CLIN will include rental, delivery, mileage, set-up, pumping, cleaning, refill, restock, dismantling, pickup and relocation of heated and non-heated Standard Portable Latrines, Handicap Portable Latrines. Services under this CLIN will also include the pumping of Vault Latrines, Grey Water Containers, and Black Water Bags /Containers. Services to be performed in accordance with the PWS. A breakdown of each line item is located in the pricing sheet. Pricing Arrangement: Firm Fixed Price				
Option Line Item 3001	Option Year 3 Portable Latrine Rental and Related Services Services under this CLIN will include rental, delivery, mileage, set-up, pumping, cleaning, refill, restock, dismantling, pickup and relocation of heated and non-heated Standard Portable Latrines, Handicap Portable Latrines. Services under this CLIN will also include the pumping of Vault Latrines, Grey Water Containers, and Black Water Bags /Containers. Services to be performed in accordance with the PWS. A breakdown of each line item is located in the pricing sheet. Pricing Arrangement: Firm Fixed Price	1	Job		

Continuation of Description

Requirements

Portable Latrine Rental and Related Services

0001

Product Service Code : W085

North American Industry Classification System (NAICS) : 562991

Continuation of Deliveries or Performance

0001	Quantity 1 Job Address and POC Period of Performance From 01 Jun 2026 To 31 May 2027
Option Line Item 1001	Quantity 1 Job Address and POC Period of Performance From 01 Jun 2027 To 31 May 2028
Option Line Item 2001	Quantity 1 Job Address and POC Period of Performance From 01 Jun 2028 To 31 May 2029
Option	Quantity 1 Job

Line Item 3001	Address and POC Period of Performance From 01 Jun 2029 To 31 May 2030
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Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation	2026-02		

2026-O0038)

52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05

52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident	2024-05		

Reporting.

252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05		

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
<u>31362 Truckdriver, Medium</u>	<u>\$34.28 - 36.7%</u>
<u>31363 Truckdriver, Heavy</u>	<u>\$36.14 - 36.7%</u>
<u>23471 Laborer</u>	<u>\$28.45 - 36.7%</u>

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

FOB Destination

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2-in-1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HQ0490</u>
Issue By DoDAAC	<u>W912D0</u>
Admin DoDAAC	<u>W912D0</u>
Inspect By DoDAAC	—

Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

See Task Order for POC.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.232-90	Fast Payment Procedure. (Deviation 2026-O0038)	2026-02		
52.233-1	Disputes. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective	Alternate	Variation
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		Date	Deviation	Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.204-7003	Control of Government Personnel Work Product.	1992-04		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.216-18	Ordering.	2020-08		

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 01 June 2026 through 31 May 2030.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

- (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

- (ii) Distributes the delivery order or task order via email to the Contractor's email address.

- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19	Order Limitations.	1995-10
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Order Limitations (Oct 1995)

- (a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$100.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

- (b) *Maximum order.* The Contractor is not obligated to honor-

- (1) Any order for a single item in excess of \$350,000.00;

- (2) Any order for a combination of items in excess of the total value of the contract; or

- (3) A series of orders from the same ordering office within 2 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

- (c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

- (d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 2 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-21	Requirements. (Deviation 2026-00038)	2026-02
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Requirements (Feb 2026) (Deviation 2026-O0038)

- (a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.
- (b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
- (c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.
- (d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.
- (e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.
- (f) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's ordering period; *provided* , that the Contractor shall not be required to make any deliveries under this contract after 31MAY2030.

52.217-8 Option to Extend Services. 1999-11

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6

months. The Contracting Officer may exercise the option by written notice to the Contractor within 5 days of contract expiration.

(End of clause)

52.217-9 Option to Extend the Term of the 2000-03
Contract.

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 5 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 10 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 48 Months.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Attachment 01 - JBER Performance Work Statement (APR 2026)	Performance Work Statement		05 May 2026			Attachment	No
0002	Attachment 02 - Work Experience Sheet	Attachment 02 - Work Experience Sheet		03 Apr 2026			Attachment	No
0003	Attachment 03 - Price Sheet - JBER	Attachment 03 - Price Sheet		03 Apr 2026			Attachment	No
0004	Attachment 04 - Wage Determination 2015-5681 Rev25	Wage Determination		03 Apr 2026			Attachment	No
0005	W912D0-26-Q-A006 Q&A s	Questions and Answers		05 May 2026			Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any

system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Addendum to FAR 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (SEP 2023)

Pursuant to FAR 12.205(a)(1) (DFARS CD 2026-00028), the provision at FAR 52.212-1 is augmented as follows: Offerors shall prepare their quotations IAW FAR 52.212-1 and this addendum. A complete quote must be received to be considered for award. Quotes that fail to address all requirements or follow all instructions will be considered non-responsive and ineligible for contract award. Respond to each item listed below, if the response is "None" or "Not applicable," explicitly state and explain. **A complete quote includes a response and submission to each of the following:**

- 1. General Information:** Quoter Business Name, Address, Cage, and UEI number (ensure Representation and Certifications are up to date in SAM.gov), Business Size and Type of Small Business based on applicable NAICS Code as provided above, Federal Tax ID, Primary Point of Contact (to include telephone and e-mail address), payment terms (i.e. net 30) and provide a GSA contract number if some or all items proposed are on the GSA schedule.
- 2. Technical Capability Submission:** The Quoter shall submit, as part of its quote, a technical capability narrative, not to exceed 10 pages with 12-point font, demonstrating the Quoter's thorough understanding of the scope of work and capability to provide the products outlined in Addendum to FAR 52.212-2 Evaluation and Attachment 01 - Performance Work Statement. To facilitate evaluation, the technical narrative shall provide the Government with reasonable assurance that the Quoter has the relevant technical capability required to meet the stated requirements and shall be prepared in a format consistent with the evaluation criteria for award set forth in this solicitation. The Technical Capability Submission should be a stand-alone document containing all information necessary for the Government to perform a complete technical evaluation. Quoters may submit pictures, brochures, product/service literature, product samples or any other pertinent technical information of the quoted product (or services) to facilitate evaluation and demonstrate the Offeror's ability to meet the technical requirements, but may not exceed the page limitation above.
- 3. Work Experience Submission:** The Quoter shall submit, as part of its quote, Attachment 02 - Work Experience Reference Sheet with work experience performed within the last three (3) years for work that is similar in nature, scope, and complexity to that which will be performed under the prospective award contemplated by this solicitation. This submission must illustrate similar work that the Quoter has been awarded or hired for. Quoters are advised that the Government is not bound by a Quoter's opinion of the relevance of its work experience. At a minimum, at least two reference sheets shall be completed and provided with the Quoter's quote.
- 4. Price Sheet:** The Quoter shall submit complete pricing for each CLIN listed in Attachment 03 - Pricing Sheet to include the unit price and the extended price for each line item and a total price in US Dollars (\$). All options must be priced; partial quotes will not be accepted.
- 5. Past Performance Information:** Quoters need not submit past performance information. The government will consider past performance information, if available, from the web-enabled Supplier Performance Risk System (SPRS)

regarding the Quoter's past performance history to supplement the technical evaluation. The Government may query other internal databases (e.g. CPARS) at its discretion.

6. Subcontractors: Subcontractors may be used to perform work under this contract. If a quoter intends to use subcontractors, the quoter must identify in the quote the names of the subcontractors and the portions of the work the subcontractors will perform. If a quote with subcontractors is selected, the quoter must provide the following information concerning each prospective subcontractor within two working days from the date of the Contracting Officer's request: complete name of the subcontractor, complete address of the subcontractor, type of work the subcontractor will perform, percentage of the work the subcontractor will provide, evidence that the subcontractor holds a valid Alaska business license, and a written statement signed by each proposed contractor that clearly verifies that the subcontractor is committed to render the services required by the contract. A Quoter's failure to provide this information, within the time set, may cause the government to consider their quote non-responsive and reject it.

7. Formatting Requirements: All quotes and attachments shall be in Adobe Acrobat (.pdf), Microsoft Word, or Microsoft Excel format.

8. Solicitation Requirements, Terms and Conditions: Quoters are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation criteria in Addendum to FAR 52.212-2. Failure to comply with the terms and conditions of the solicitation may result in the Quoter being ineligible for award. As such, Quoter must list any exceptions to the terms and conditions in the solicitation.

9. All interested Offerors shall submit the following:

- a. Standard Form (SF) 1449 Solicitation/Contract/Order for Commercial Items (signed and dated)
- b. Standard Form (SF) 30, Amendment of Solicitation/Modification of Contract (signed and dated)

10. Period for acceptance of quotes: Quoters shall indicate how long the quote is valid. As a minimum the quote shall be valid for 60 days.

QUOTE SUBMISSION AND INQUIRIES

1. Complete quotes shall be submitted prior to the closing date and time identified on the Standard Form (SF) 1449 to the following email addresses:

yolanda.m.ikner.civ@army.mil

michelle.i.aguilar2.civ@army.mil

2. The point of contact responsible for providing additional information and answering all inquiries is the Contracting Officer, Dr. Yolanda Ikner, via the Contract Specialist, Michelle Aguilar. All questions or concerns regarding this solicitation shall be submitted in writing to the Contracting Officer and Contract Specialist at the emails listed above no later than **1300 AKDT 01 May 2026**.
3. Electronic quote submissions via email will be accepted.
4. A Site Visit will NOT be held.

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

See addendum.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Addendum to FAR 52.212-2, Evaluation - Commercial Products and Commercial Services (NOV 2021)

Pursuant to FAR 12.205(a)(2) (DFARS CD 2026-O0028), the provision at FAR 52.212-2 is augmented as follows:

1. **BASIS FOR AWARD:** The Government will award a Firm-Fixed-Price (FFP) Requirements contract resulting from this solicitation to the responsive, responsible Quoter (as determined within the meaning of FAR Part 9.104 (DFARS CD 2026-O0042)), whose quote conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be use to evaluate offers:

a. **Factor 1 - Technical Capability:** The Government will evaluate the quote to see if the quote and any supporting documentation meet the technical requirements of this solicitation and Attachment 01 - Performance Work Statement.

Minimum Requirements:

- i. Have at least one pumper truck.
 - ii. Have at least one vehicle to transport latrines in the rural Alaskan Terrain with the following:
 - Max 12,000 lbs. Gross Vehicle Weight.
 - 4 Wheel Drive.
 - iii. Availability of Latrines:
 - Have at least 50 portable latrines, with the specifications as outlined in the PWS.
 - Have at least 10 handicapped accessible latrines with specifications outlined in the PWS.
- b. **Factor 2 - Work Experience** (expertise, regulatory compliance): The Government will evaluate the summary of work experience for recency (within the past 3 years), similar nature, scope, and complexity to that which will be performed under the prospective award contemplated by this solicitation, assessing the likelihood that the offeror's relevant work experience will minimize risk to the Government of unsuccessful performance. (ATTACHMENT 02 - Work Experience Reference Sheet)
- c. **Factor 3 - Price:** The Government will evaluate the total overall price for completeness and to determine if it is fair and reasonable IAW FAR 12.204(a) (DFARS CD 2026-O0028). Government expects competitive quotes to be submitted for this procurement and will use these competitive quotes to determine price reasonableness. The evaluated price for award purposes will be the combined total of the base year and all option periods. The Government intends to evaluate quotes and award

without discussions; therefore, quotes should be for offerors' best pricing. If competitive quotes are not received, the Government reserves the right to utilize other methods identified in the FAR to determine price reasonableness.

i. Completeness. Each offeror is required to provide complete pricing for each contract line item identified in Attachment 03 - Pricing Sheet.

ii. As part of the price evaluation, will evaluate the Option to Extend Services under FAR clause 52.217-8 by adding one-half of the quoter's final option price to the quoter's total price. The final award evaluation will include the base year, all option years, and the six (6) months FAR clause 52.217-8 option.

For an Offeror to be considered for award, the quote must receive an "Acceptable" rating in both non-price Factors. A quote receiving a rating of "Unacceptable" in any non-price Factor will not be eligible for award.

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06		

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)